

SPECIAL CONDITIONS OF CONTRACT

1. Force Majeure

The Contractor shall deliver the Goods to the nominated store without prejudice to any other remedy. The Tenderer shall keep a record of every batch supplied in the form set out in the Schedules. The Authority shall maintain the insurance policy in force on each occasion that a delivery is made.

- (a) The Authority shall keep a record of every batch supplied without prejudice to any other remedy.
- (b) The Contractor shall keep a record of every batch supplied in the form set out in the Schedules.
- (c) The Authority shall bear the cost of replacement on each occasion that a delivery is made.
 - (i) The Tenderer shall allow inspection of the production facility unless otherwise agreed in writing.
 - (ii) The Tenderer shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
- (d) The Supplier may extend the period on written request subject to the Special Conditions of Contract.

2. Definitions

The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order. The Tenderer shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Tenderer shall comply with the Technical Specifications without prejudice to any other remedy. The Authority Representative may reject any consignment that fails the acceptance test without prejudice to any other remedy.

- 2.1 The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The Authority Representative may extend the period on written request in the form set out in the Schedules.
- 2.2 The Tenderer may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Supplier shall provide a certificate of analysis for each batch unless otherwise agreed in writing.
- 2.3 The Authority shall deliver the Goods to the nominated store at no additional cost to the Authority. The Authority Representative shall notify the other party in writing on each occasion that a delivery is made.

- (a) The nominated store keeper shall comply with the Technical Specifications subject to the Special Conditions of Contract.

3. Packaging and Labelling

The Authority Representative shall return the empty containers at its own cost on each occasion that a delivery is made. The Authority shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

3.1 The Authority shall bear the cost of replacement subject to the Special Conditions of Contract. The Authority shall comply with the Technical Specifications throughout the Contract Period.

- (a) The Tenderer shall deliver the Goods to the nominated store without prejudice to any other remedy.
- (b) The nominated store keeper may extend the period on written request within fourteen days of the Purchase Order.
- (c) The Authority shall submit the monthly delivery programme on each occasion that a delivery is made.
 - (i) The Contractor shall return the empty containers at its own cost subject to the Special Conditions of Contract.
 - (ii) The Authority Representative shall label each container with the batch number and the date of manufacture without prejudice to any other remedy.

4. Training

The Tenderer shall bear the cost of replacement before the delivery date stated in the Purchase Order. The Contractor shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Tenderer shall provide a certificate of analysis for each batch where the Goods are supplied in bulk.

4.1 The Contractor shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

4.2 The Authority shall deliver the Goods to the nominated store at no additional cost to the Authority. The Authority Representative shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

4.3 The nominated store keeper shall notify the other party in writing subject to

the Special Conditions of Contract. The Authority shall notify the other party in writing throughout the Contract Period.

- (a) The Authority Representative shall submit the monthly delivery programme without prejudice to any other remedy.
- (b) The Authority shall allow inspection of the production facility without prejudice to any other remedy.

5.
Insurance

The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order. The Authority shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Authority shall provide a certificate of analysis for each batch throughout the Contract Period. The Tenderer shall allow inspection of the production facility where the Goods are supplied in bulk.

- (a) The Authority shall notify the other party in writing unless otherwise agreed in writing.
- (b) The Authority shall provide a certificate of analysis for each batch on each occasion that a delivery is made.
- (c) The nominated store keeper shall provide a certificate of analysis for each batch without prejudice to any other remedy.
 - (i) The Contractor may extend the period on written request within fourteen days of the Purchase Order.
 - (ii) The Supplier shall maintain the insurance policy in force without prejudice to any other remedy.

6.
Sub-contracting

The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The Authority Representative shall allow inspection of the production facility in the form set out in the Schedules. The Supplier shall maintain the insurance policy in force in the form set out in the Schedules.

6.1 The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Contractor shall return the empty containers at its own cost within fourteen days of the Purchase Order.

- (a) The Authority Representative shall return the empty containers at its own cost where the Goods are supplied in bulk.

- (b) The nominated store keeper shall submit the monthly delivery programme before the delivery date stated in the Purchase Order.
- (c) The Authority Representative shall notify the other party in writing throughout the Contract Period.
 - (i) The Authority Representative shall bear the cost of replacement where the Goods are supplied in bulk.
 - (ii) The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.